IPC + CrPC B

Forensic Medicine | 3rd Year MBBS

Hi Sammy!
IPC sections = most asked in FMT viva!
Must memorize these!

IPC | CrPC | Forensic Medicine | 3rd Year

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299 vs 304 = the most classic FMT question! Learn the difference!

Murder (302) vs Culpable Homicide (299)

Feature	Culpable Homicide (299)	Murder (302)
Definition	Causing death with intention	Causing death with specific intent
Intention	Knowledge that act may cause	Intention to cause death
Degree	Lesser degree (3rd degree)	Highest degree (1st degree)
Punishment	Sec 304 (Part I: life/10yr)	Sec 302 (death/life imprisonment)
Knowledge	Knowledge of likely death	Knowledge of certainty of death
Example	Hitting someone in anger	Shooting someone in head

★ **Golden Rule!**
"All murder is culpable homicide, but all culpable homicide is NOT murder."

Hurt (319) vs Grievous Hurt (320)

Hurt (Sec 319-324)	Grievous Hurt (Sec 320-326)
Bodily pain, disease, or infirmity	Emasculation
Simple hurt = Sec 323 (1yr jail)	Permanent privation of sight of either eye
Voluntary causing hurt = Sec 324	Permanent privation of hearing of either ear
Hurt by dangerous weapon = 324	Privation of any member or joint
Punishment: up to 1-3 years	Destruction/permanent impairing of any member
	Permanent disfiguration of head or face
	Fracture or dislocation of bone or tooth
	Any hurt which endangers life

★ **8 Types of Grievous Hurt (Sec 320)**
Mnemonic: EEPPDF + Fracture + Endanger life (Emasculate, Eye, Ear, Privation, Permanent, Disfigure, Fracture + any hurt endangering life)

Sec 375 definition of
rape is asked verbatim!
And Sec 84 for insanity!

Rape — IPC Section 375 (Key Elements)

- Against her will / Without her consent
- Consent by fear of death or hurt / Consent by misconception of fact
- Consent when intoxicated / unsound mind / Under 18 years (statutory rape)
- Punishment: Sec 376 = min 10 years RI, may extend to life imprisonment
- Marital rape exception: Sexual intercourse by husband with wife (>15yr) not rape

Insanity + Criminal Responsibility (IPC 84)

IPC Section 84 — McNaughten's Rule (1843):

"Nothing is an offence done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that what he is doing is either wrong or contrary to law."

Important IPC Sections for FMT

Section	Offence	Key Point
84	Unsoundness of mind	McNaughten rule — no criminal liability
85	Intoxication (involuntary)	No offence if given substance without knowledge
87-89	Consent (harm)	Consent to harm; age >18; good faith by doctor
92	Act in good faith	Emergency medical treatment without consent
174	Non-attendance at inquest	Compulsory for doctor when summoned
176	Fabricating false evidence	Punishment for giving wrong evidence
269	Negligent act spreading disease	Unlawfully spreading infectious disease
304A	Death by negligence	Rash/negligent act, NOT amounting to CH — 2yr
309	Attempt to suicide	Decriminalized by MHCA 2017
320	Grievous hurt	8 types (most important list!)

New BNS replaced IPC from July 2024! Know both old AND new!

Important CrPC Sections for FMT

Section	Topic	Detail
53	Examination of accused	By registered medical practitioner on police request
164	Recording confessions	Before Judicial Magistrate; not police officer
174	Police inquest	Unnatural death investigation by police
176	Magistrate inquest	Custody death, dowry death within 7 years
293	Expert evidence	Reports of chemical examiner, serologist, etc.
299	Record of evidence	In absence of accused (when absconding)
321	Public prosecutor	Withdrawal from prosecution with court permission

IPC to BNS Conversion (New Criminal Laws 2024)

Offence	Old IPC	New BNS	Key Change
Murder	302	103	Same, reorganized
Culpable homicide	299-301	100-102	Restructured
Rape	375-376	63-68	Expanded definition
Grievous hurt	320-326	117-122	Same 8 types
Death by negligence	304A	106	Increased punishment
Attempt to suicide	309	Deleted	MHCA 2017 decriminalized
Dowry death	304B	80	Same substance
Hurt	319-324	114-117	Restructured

CrPC to BNSS Conversion

Topic	Old CrPC	New BNSS	Status
Police inquest	174	194	Same procedure
Magistrate inquest	176	196	Same procedure
Examination of accused	53	53	Similar
Recording confessions	164	183	Similar
Expert evidence	293	329	Similar

★ **BNS/BNSS/BSA replaced IPC/CrPC/IEA from 1 July 2024. Exams may ask BOTH!**
Learn the old sections first (textbooks use them), then know the new equivalents.

Know your sections =
easy 20+ marks in FMT!
You've GOT this Sammy!

Most Repeated LAQs (10–12 marks)

- 1. Differentiate murder (302) and culpable homicide (299) with examples
- 2. Define rape (IPC 375). Discuss examination of victim and accused
- 3. What is grievous hurt? Enumerate all 8 types under Sec 320
- 4. Discuss McNaughten's rule and criminal responsibility of insane person
- 5. Write about new criminal laws BNS/BNSS and key changes from IPC/CrPC

Most Repeated SAQs (5–6 marks)

- 1. IPC 304A — death by negligence with example
- 2. Sec 84 IPC — unsoundness of mind defense
- 3. 8 types of grievous hurt (Sec 320)
- 4. Difference between hurt and grievous hurt
- 5. CrPC 174 vs 176 (police vs magistrate inquest)
- 6. Sec 309 IPC and decriminalization of suicide attempt

One-Liner Associations (MCQ/Viva Gold)

Question	Answer
Section for murder	IPC 302 / BNS 103
Section for culpable homicide	IPC 299 / BNS 100
Section for rape	IPC 375 / BNS 63
Section for grievous hurt	IPC 320 / BNS 117
Section for insanity defense	IPC 84 / BNS 22
Section for negligent death	IPC 304A / BNS 106
McNaughten rule year	1843
Age of consent for rape	18 years
Attempt to suicide section	IPC 309 (now decriminalized)
Dowry death section	IPC 304B / BNS 80

♥ **Law and medicine go hand in hand, Sammy!**
These sections will protect you and your patients throughout your career!